

24VECV03090 24VECV03090

County: los-angeles

Division: Civil Law and Motion

Department: T

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24VECV03090 Royal Business Bank v Younan

Tentative ruling: Grant motion to strike. Deny sanctions.

Unless there is a motion or an ex parte application asking the court to do something, the court does not take any action on documents filed with the court and they are not reviewed. The subject declarations are two such documents. They were filed and nothing has been done with them because they were never set on calendar, either by an ex parte application or a noticed motion, with a request for the court to do anything.

The concept that anything can be done without any notice to the other side is inconsistent with the law. There is no statute here which avoids notice requirements. Many times, stipulated judgments state what are the notice requirements. It is not uncommon for stipulations to state that after written notice of default and an opportunity to cure, judgment can be entered ex parte without notice. In the absence of an agreement or statute waiving notice, then the default is to be followed. The default is:

CRC Rule 8.817. Service and filing

"(a) Service

(1) Before filing any document, a party must serve, by any method permitted by the Code of Civil Procedure, one copy of the document on the attorney for each party separately represented, on each unrepresented party, and on any other person or entity when required by statute or rule.

(2) The party must attach to the document presented for filing a proof of service showing service on each person or entity required to be served under (1). The proof must name each party represented by each attorney served."

Here, two declarations were filed with the court without proofs of service. This violates CRC Rule 8.817. Furthermore, no ex parte application or noticed motion was filed. Therefore, it is unclear how counsel thought this would be brought to the court's attention. This is an Independent Calendar court, not a collection court. Unless it is set for some type of hearing, pleadings are not reviewed.

In opposition, counsel states that he does this all the time without notice. Again, how those requests are brought to the court's attention without a motion or ex parte application is perplexing. Again, perhaps things are different in limited

jurisdiction collection cases. Nevertheless, this court follows the rules. Absent an agreement or statutory authority that notice is not required, notice is required.

The moving papers asks for sanctions to be assessed to be paid to moving party without any statutory authority to support the assessment of sanctions. It is unclear why sanctions should be paid to the moving party. Neither the State Bar rule nor CCP section 1014 authorize sanctions payable to opposing counsel. Sanctions are denied.

Clerk to give notice.